

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robyn Howell	Team: Team # 4	CCRB Case #: 200714505	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 09/26/2007 4:00 PM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 3/26/2009	Precinct: 09		
Date/Time CV Reported Sat, 09/29/2007 11:50 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/04/2007 3:23 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Keith Gallagher	04733	938517	009 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thomas Gallagher	23752	928341	009 PCT
2. LT Patrick Ferguson	00000	906216	009 PCT
3. POM Michael Giuffre	26900	928381	009 PCT
4. POM Benjamin Burgess	03974	940976	009 PCT
5. POM William Svenstrup	08986	905139	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Keith Gallagher	Discourtesy: PO Keith Gallagher spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . An officer	Force: An officer used physical force against § 87(2)(b)	B . Exonerated
C . An officer	Force: An officer used physical force against § 87(2)(b)	C . Alleged Victim Uncooperative
D . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	D . Alleged Victim Uncooperative

Synopsis

§ 87(2)(b) called IAB's command center on September 29, 2007 to file a complaint against members of the New York City Police Department. The case was referred to the CCRB on October 4, 2007. § 87(2)(b) reported that on September 26, 2007, in the vicinity of § 87(2)(b) in Manhattan, PO Keith Gallagher from the 9th Precinct told her to "shut the fuck up and toughen the fuck up." (Allegation A), and an officer pushed her (Allegation B). In her phone statement, she also alleged that an officer pushed her daughter § 87(2)(b) (Allegation C) and told her that school safety agents should have beat her ass (Allegation D).

§ 87(2)(g) it is recommended that allegation A be closed as unsubstantiated § 87(2)(g)

§ 87(2)(b) It is also recommended that Allegation B be closed as exonerated § 87(2)(g) § 87(2)(b)

It is recommended that Allegations C and D be closed as victim uncooperative § 87(2)(g) § 87(2)(b)

Summary of Complaint

§ 87(2)(b) provided a phone statement to the CCRB on October 11, 2007 (Encl.7A-7B). She was interviewed at the CCRB on November 28, 2007 (Encl.8A-8N). § 87(2)(b) § 87(2)(g)

On September 25, 2007, § 87(2)(b), § 87(2)(b)'s daughter's, iPod was stolen at § 87(2)(b). The assistant principal believed that the child responsible for stealing the iPod was a student named § 87(2)(b). On September 26, 2007, § 87(2)(b) mother § 87(2)(b) went to the school because she was upset that her daughter was being accused of stealing the iPod. § 87(2)(b)'s friends called § 87(2)(b) on the phone and told her that § 87(2)(b) was screaming, holding, and hitting § 87(2)(b) in front of the school. After the phone call, § 87(2)(b) went to the school. She told her husband, § 87(2)(b) to follow her to the school at a later time with her son. Once § 87(2)(b) got to the school, she saw § 87(2)(b) outside of the school surrounded by several children.

§ 87(2)(b) went into the school. Upstairs in the school, she noticed § 87(2)(b) § 87(2)(b). She approached § 87(2)(b) § 87(2)(b) and asked "Did you fucking hit my daughter?" § 87(2)(b) § 87(2)(b) looked at her and responded however § 87(2)(b) § 87(2)(b) did not recall what the response was. The verbal exchange between § 87(2)(b) and § 87(2)(b) happened very quickly and school safety agents rushed in saying "Whoa, whoa, whoa." § 87(2)(b) stated to the safety agents "She hit my daughter and all y'all are doing is sitting here gossiping." "Do your fucking job." She repeatedly told the school safety agents to do their "fucking" job because they were having a "good ole time" while her daughter was about to get "jumped" by a group of children. One of the safety agents told § 87(2)(b) to go outside which she did. While outside, the door to the school was open and she was able to look up at the stairs where § 87(2)(b) § 87(2)(b) and other school safety agents were standing. At that point, a safety agent identified through this investigation as School Safety Agent § 87(2)(b) told § 87(2)(b) to leave it alone. § 87(2)(b) responded by telling § 87(2)(b) § 87(2)(b) to do her "fucking" job because all of the safety agents were upstairs and not tending to her daughter. At that moment, § 87(2)(b) was very angry and continued to curse at the other safety agents that were present. She told SSA § 87(2)(b) that her daughter was assaulted and she did not do anything about it. SSA § 87(2)(b) went downstairs and told § 87(2)(b) "You want to be a fucking tough girl" and § 87(2)(b) replied "Just do your fucking job." SSA § 87(2)(b) then screamed to § 87(2)(b) "You want to be a tough girl; I'm going to show you a tough girl, turn around!" She then turned § 87(2)(b) around, threw her against the door of the school, and handcuffed her.

During that time § 87(2)(b) was crying and screaming "Please don't arrest my mother", as she was standing to the left of § 87(2)(b) while § 87(2)(b) was facing the school. SSA § 87(2)(b) dragged § 87(2)(b) upstairs to the second floor which houses another school, and told her "You want to be a fucking tough girl;

I'm going to show you a fucking tough girl." At the same time, § 87(2)(b) complained that her handcuffs were too tight and asked SSA § 87(2)(b) to loosen them to which she replied "Fuck you." § 87(2)(b) was then brought to the main office of another school on the second floor. She described the office as approximately ten feet wide.

Downstairs on the main floor of the building, § 87(2)(b) was also being arrested for allegedly scratching SSA § 87(2)(b) and ripping her shirt. § 87(2)(b) heard officers screaming at § 87(2)(b). At that moment, § 87(2)(b) entered the main office where § 87(2)(b) was sitting. She told him to check on § 87(2)(b). § 87(2)(b) was in the office for approximately ten minutes before two officers from the 9th Precinct entered the office. PO1, who she believed was PO Keith Gallagher was described as tall, approximately 5'11" or 6'0" white male in either his mid to late twenties. PO2, identified through this investigation as PO William Svenstrup, was described as a short white male with brown hair and light brown eyes. Two other officers, PO3 and PO4 were also in the principal's office. PO3 and PO4 were described as white and black males respectively. Both officers were in uniform, and may have been from the 9th precinct. More NYPD officers were also outside of the office. Approximately six to eight officers responded to the school.

When PO Keith Gallagher went into the principal's office, § 87(2)(b) explained to him that the incident was a mistake and that she did curse at SSA § 87(2)(b) however she did not touch her. She then asked PO Keith Gallagher to loosen the handcuffs and he told her to "Sit down and shut the fuck up." PO Svenstrup told her that they did not have the keys to loosen the handcuffs. She asked PO Keith Gallagher again if he could loosen the handcuffs and he told her not to move because he was going to switch the handcuffs that she had on to his handcuffs. After switching the handcuffs, § 87(2)(b) asked PO Keith Gallagher a third time to loosen the handcuffs. She believed that he replied "Toughen the "fuck" up and shut up now." He asked "You're a tough girl aren't you?" She explained to him that the handcuffs were tight and hurting her wrists and he responded "Shut up and sit down." She explained that there was no room in the handcuffs and they were placed against her skin.

§ 87(2)(b) told PO Keith Gallagher that she has family members who are police officers and he said to her "So you know the drill" or something like that. After that, she alleged that PO Keith Gallagher grabbed the handcuffs, squeezed them and then told her to sit down on the bench. She waited in the office until she was escorted to the precinct. As she was being escorted out of the school to go to the precinct, she told § 87(2)(b) to get the names and shield numbers of all of the officers that were involved in the incident.

While being escorted out of the school, § 87(2)(b) saw an officer scream at § 87(2)(b) who was standing in the main lobby and placed in handcuffs. § 87(2)(b) tried to give her a kiss however she alleged that one of the officers on the scene grabbed § 87(2)(b)'s handcuffs and pushed her against the wall. School safety agents were telling students that were in the area to get out of the way. § 87(2)(b) said to the officer that pushed her daughter "Yo what's going on?" She believed that the officer who pushed her daughter was PO Benjamin Burgess from the 9th Precinct. She described PO Burgess as a black officer.

She asked § 87(2)(b) if she was okay and she responded "No, mommy, I'm not okay." § 87(2)(b) then asked one of the police officers that was present why § 87(2)(b) was being arrested. One of the officers responded "Because she assaulted a school safety agent." § 87(2)(b) proceeded to tell the officer that § 87(2)(b) did not touch SSA § 87(2)(b) however the officer told her to shut up and pushed her away from § 87(2)(b). She asked the officer who was going to be with § 87(2)(b) while § 87(2)(b) was being transported to the precinct and the officer replied nobody.

§ 87(2)(b) and § 87(2)(b) were placed in separate cars on their way to the 9th Precinct. At the precinct, an officer took § 87(2)(b) to a room located on the left side of the precinct and questioned her. Based on what § 87(2)(b) told § 87(2)(b), § 87(2)(b) alleged that one of the officers, whom she believed was PO Burgess, told her daughter "You like to hit school safety officers? They should have beat the shit out of you."

While at the precinct, § 87(2)(b) had to re-take her fingerprints because her charges kept changing and her paperwork was redone several times. At first, she was being charged with assaulting SSA § 87(2)(b) however, SSA § 87(2)(b) told the Captain of the 9th Precinct that § 87(2)(b) did not assault her. Therefore, that charged was dropped and § 87(2)(b) was charged § 87(2)(b).

Results of Investigation

Witness Statements

§ 87(2)(b)

On December 28, 2007, § 87(2)(b) was contacted to get permission to interview § 87(2)(b) who is a minor. § 87(2)(b) did not grant permission to the CCRB on the advice of an attorney and therefore, § 87(2)(b) did not provide a statement.

§ 87(2)(b)

On November 28, 2007, § 87(2)(b) was interviewed at the CCRB (Encl.3A-3D). § 87(2)(b) explained that on September 26, 2007, § 87(2)(b) mother § 87(2)(b) went to the school and was upset because her daughter was accused of stealing § 87(2)(b)'s iPod. § 87(2)(b)'s friends called § 87(2)(b) on the phone and told her that § 87(2)(b) was screaming, and hitting § 87(2)(b) in front of the school. After the phone call, § 87(2)(b) went to the school and she told him to follow her to the school with her younger son.

When § 87(2)(b) arrived at § 87(2)(b) § 87(2)(b) was standing outside with her friends. They informed him that his wife was handcuffed by a school safety agent and dragged into the school. When he entered the school, he went into the main office of another school. He described the office as a big office, twice the size of the library room at the CCRB.

When he saw § 87(2)(b) she was sitting down crying with handcuffs on. Inside of the office with her was PO Keith Gallagher who was described as white, a little shorter than § 87(2)(b) who is 6'0" so perhaps 5'10" or 5'11" with a slim build and long hair. Another officer identified through this investigation as PO Thomas Gallagher entered the office after him and he was described as a white male, taller than § 87(2)(b) with a slim build, with dark brown hair and a "buzz" cut. § 87(2)(b) asked what happened and the officers responded that § 87(2)(b) was being arrested for disorderly conduct and obstructing governmental administration. § 87(2)(b) told him that SSA § 87(2)(b) had arrested her because she was yelling at her. The officers stated that they were waiting for a supervisor. § 87(2)(b) asked the officers to loosen the handcuffs because they were really tight and they were hurting her wrists and one of the officers responded that the "handcuffs weren't tight and to deal with it."

§ 87(2)(b) asked § 87(2)(b) to call her aunt, who is a police officer. § 87(2)(b) called § 87(2)(b)'s aunt and explained to her what was happening. He asked PO Keith Gallagher if he would like to talk to the aunt and he responded "No if she is on the job, then she knows what the procedure is. No, I'm not going to talk to her." § 87(2)(b) told the aunt that he would call her back and hung up the phone. § 87(2)(b) continued to complain about the handcuffs. PO Keith Gallagher replied "Just deal with it and shut the fuck up." "If your aunt is on the job and you worked for EMS you know how it is, you know how it goes, just deal with it." He told her that the handcuffs were going to stay and that they were waiting for the supervisor. He also told her "Just be quiet already." "It's fucking ridiculous, just shut the fuck up."

When § 87(2)(b) was being transported to the precinct, he explained that she and § 87(2)(b) may have had a brief interaction in which § 87(2)(b) may have told § 87(2)(b) that it will be alright. During that time, there was another fight going on near the stairwell in the main lobby inside of the school. § 87(2)(b) was separated from him and § 87(2)(b) and ended up closer to the stairwell. Officers told people standing near the stairwell to leave the stairwell and to go outside or "Get the hell out if they had nothing to do." Officers also told people "If they did not want to get arrested to get the hell out of the area." § 87(2)(b) believed that PO Burgess described as a black male, short, approximately 5'8" with a slim build, and an officer identified through this investigation as PO Suzuki, described as an Asian officer were with § 87(2)(b)

At the precinct, § 87(2)(b) spoke to PO Burgess. PO Burgess inputted § 87(2)(b)'s arrest paper work. § 87(2)(b) asked him if he could stay with § 87(2)(b) while she was being questioned and PO Burgess told him to wait outside but not to worry because § 87(2)(b) would be able to go home. At the precinct, § 87(2)(b) recalled FDNY/EMS going to the precinct and tending to his wife to examine her wrists. After § 87(2)(b) was released, § 87(2)(b) left the precinct.

§ 87(2)(b)

On April 15, 2008, § 87(2)(b) provided a brief phone statement in regards to § 87(2)(b)'s complaint (Encl.4A). § 87(2)(b) is the principal of § 87(2)(b). He explained that he was present when § 87(2)(b) was arrested by the school safety agent. At that time, he did not hear her complain of any physical force being used or of any injury to her wrist. He was also present when officers from the 9th precinct arrived at the school however he did not witness any interaction between them and § 87(2)(b). § 87(2)(b) explained that § 87(2)(b) three different schools and § 87(2)(b) is located on the first floor of the building and § 87(2)(b) is located on the third floor. He believed that § 87(2)(b) was taken to the principal's office on the first floor. He was not in the room with § 87(2)(b). He did not witness the handcuffs being switched from the school safety agent's to any of the officer's from the 9th Precinct. § 87(2)(b) explained that after the officers arrived, he went on about his duties. § 87(2)(b) did not know anyone who would have been in the room with § 87(2)(b) and would have witnessed the interaction between her and the officers.

Identification of Officers

The sprint report indicated that officers in sector A responded to § 87(2)(b) after a 911 call was made by a female caller named § 87(2)(b) who stated that EMS was needed at § 87(2)(b) because a school safety agent had a laceration to the arm. The roll call indicated that PO Keith Gallagher and PO William Svenstrup were assigned to sectors A and C during their tour. The officers' interviews and memo books also confirm that they were the officers that interacted with § 87(2)(b).

Officers Statements: PO Keith Gallagher and PO William Svenstrup

PO Gallagher was interviewed at the CCRB on February 22, 2008 (Encl.9A-9G). His memo book is as follows: 1606: 10-34 (Assault in progress) @ § 87(2)(b) 1632: 10-92C (Crime Arrest) – 1 under @ § 87(2)(b) – trans 1 female to 9th Pct, 1638: 10-84 (Arrived at Scene) @ 9th Pct.

PO Svenstrup was interviewed at the CCRB on March 21, 2008 (Encl.10A-10F). His memo book is as follows: 1606: 10-32 (Larceny in progress) @ § 87(2)(b) (school) transport one female handled by PO Burgess. § 87(2)(g)

On September 26, 2007, PO Gallagher and PO Svenstrup worked the hours of 1500 by 2335. Their assignment was sector A and C. They received a call for an assault in progress at § 87(2)(b). When they arrived to the location, which was a school, they were directed to the principal's office. When they got to the principal's office, § 87(2)(b) was sitting down in handcuffs as she was placed under arrest. § 87(2)(b) PO Gallagher and PO Svenstrup asked § 87(2)(b) if she would like to tell them what happened and she replied in a threatening manner that she did not want to tell them what happened. § 87(2)(b) and their jobs were in jeopardy. Neither PO Gallagher nor PO Svenstrup responded to her threat and they had no further communication with her. § 87(2)(b) however kept threatening them with going to Internal Affairs. At 4:32PM, PO Gallagher switched the school safety's handcuffs to his handcuffs and PO Svenstrup believed that he assisted him. At that point in time, § 87(2)(b) was complaining about being arrested because she thought it was unfair. PO Svenstrup believed that § 87(2)(b) may have also complained about the handcuffs being too tight. PO Gallagher stated that § 87(2)(b) was cursing throughout their interaction however he could not remember exactly what she said. PO Gallagher did not curse at § 87(2)(b) and he did not specifically tell her to "sit down and shut the fuck up."

For the majority of the interaction with § 87(2)(b) PO Gallagher and PO Svenstrup were the only two officers in the principal's office along with § 87(2)(b)'s husband who arrived approximately eight minutes after them. The school secretary was also in the office with § 87(2)(b). PO Burgess was the youth officer and arrived to the school after they had arrested § 87(2)(b) and the mother of the girl that was accused of stealing § 87(2)(b)'s ipod. PO Svenstrup did not recall if PO Burgess ever went into the principal's office while they were in there.

Approximately five minutes after § 87(2)(b) was handcuffed with PO Gallagher's handcuffs, she was escorted out of the school. PO Gallagher stated there was no other incident or fight that occurred at that time however PO Svenstrup explained that there may have been another fight to which, in an attempt to

control the crowd, people were told to stay away from them. At some point, Lt. Ferguson arrived at the location and ordered for everyone involved in the incident to be arrested. § 87(2)(b) was near § 87(2)(b) when § 87(2)(b) was being brought out of the principal's office. They may have made attempts to go to each other however PO Svenstrup was not certain. No physical force was required to restrain § 87(2)(b) or § 87(2)(b). § 87(2)(b) and § 87(2)(b) were transported to the precinct in separate cars. Once at the precinct, § 87(2)(b) told Lt. Corcoran who was at the front desk § 87(2)(b) that they were going to be screwed. PO Gallagher was unsure if § 87(2)(b) complained about the handcuffs being too tight at the precinct. He stated that she was acting erratically and had to be taken to § 87(2)(b) but did not specify for what reason. EMS also went to the precinct however PO Gallagher and PO Svenstrup did not see EMS at the precinct because they resumed patrol.

PO Benjamin Burgess

PO Burgess was interviewed at the CCRB on June 17, 2008 (Encl.11A-11F). PO Burgess was assigned to sector Eddie. He worked with PO Shinji Suzuki. He was the arresting officer. His entries in his memo book are as follows: At 1600 : 10-84 (arrived at the scene), § 87(2)(b), 1632: arrest made, 1650: arrest made, 1730: gathered student statements, 1825: arrest made, 1930: omni form for j/v, 2050: omni form for arrest 1 § 87(2)(b), 2215: omni form for arrest 3, 2310: Duty Captain arrived, 2330: faxed arrest to ADA, 0010: finger printed perp 1, 0020: finger printed perp 3.

PO Burgess explained that at 4:00 he received a phone call on his cell phone from SSA § 87(2)(b) explaining that she was involved in a conflict with a parent and the parent's daughter at the school. She told him that she was in an altercation and needed him to respond to the school since he is the precinct youth officer and that it was urgent. Once PO Burgess arrived at the school, § 87(2)(b) was already in handcuffs. PO Burgess described the scene at the school as "frantic". PO Burgess met SSA § 87(2)(b) at the doorway to the school and asked her what happened. She told him that § 87(2)(b) and her daughter § 87(2)(b) had jumped her. SSA § 87(2)(b) had lacerations to her right forearm and her shirt was ripped. PO Burgess called Lt. Ferguson on his cell phone and explained the situation to him and he told PO Burgess that he was on his way. When Lt. Ferguson arrived at the school, PO Burgess explained to him the situation again. PO Burgess did not have to use any physical force to restrain anyone.

§ 87(2)(b) was inside of the principal's office sitting down on a bench which was located up a set of stairs and to the right of the building. § 87(2)(b) stood in the corridor in the hallway next to where SSA § 87(2)(b) and other school safety agents were standing. He saw one of the officers from the 9th Precinct, believed to be PO Gallagher, but did not know who his partner was. In the principal's office with § 87(2)(b) were school safety agents however no NYPD officers were in the office with her. PO Burgess was in the principal's office for approximately fifteen minutes as he gathered statements about what happened from victims and the principal.

PO Burgess asked § 87(2)(b) students that were in the office, and the principle about what happened and was able to gather statements. § 87(2)(b) was visibly angry about the situation but he did not recall if she cursed. He also did not recall if she had any visible injuries. § 87(2)(b) explained to PO Burgess that she got into a scuffle with SSA § 87(2)(b) because her daughter and another girl were fighting over a cell phone. She explained that her daughter's cell phone was stolen by the girl and she confronted the girl and told her that she was just at her house the other day and now she had her daughter's cell phone. The girl's mother then arrived to school and she and § 87(2)(b) got into a brawl outside of the school. § 87(2)(b)'s husband, § 87(2)(b) was also in the office at the time PO Burgess was in there and PO Burgess told him that if his wife was calm the arrest would go smoothly.

PO Burgess was able to gather six statements. PO Burgess stayed at the school to fill out paperwork. He did not witness any verbal interaction between § 87(2)(b) and any of the officers. He also did not see when the handcuffs were switched from the school safety agent's to NYPD's handcuffs on § 87(2)(b). PO Burgess however was the arresting officer because he was the youth officer. PO Burgess did not remember who handcuffed § 87(2)(b) but he believed that it was one of the officers from the sector that was available.

PO Burgess did not see when § 87(2)(b) was being taken out of the principal's office and out of school as he remained in the principal's office gathering statements. He explained that both § 87(2)(b) and § 87(2)(b) were taken out at the same time. He believed that PO Gallagher took them out of the school. To PO Burgess's knowledge, § 87(2)(b) did not complain about the handcuffs being too tight nor did she explain about any injuries to her wrists. She also did not complain specifically to him about either one at the school or at the precinct.

PO Thomas Gallagher

PO Gallagher was interviewed at the CCRB on June 18, 2008 (Encl.12A-12E). His memo book is as follows: 1400: present for duty @ 9th Pct., 1515: roll call- rec'd 9Lt. op, 1530: Rmp# 311 w/Lt. Ferguson & PO Giuffre, 2245: End of Tour.

On September 26, 2007, PO Gallagher worked the hours of 1400 by 2235. He worked with Lt. Patrick Ferguson and PO Michael Giuffre. His assignment was Lt. Ferguson's operator. He drove either an unmarked silver Chevy Impala or silver Crown Victoria. PO Gallagher had no entries in his memo book regarding this incident. He explained that a school safety agent was involved in the incident. PO Gallagher was not sure if there was a call put over the radio but responded to the school because Lt. Ferguson had to respond to the incident. Once at the school a mother and a daughter later identified as § 87(2)(b) and § 87(2)(b) were already in handcuffs in the lobby of the school. Lt. Ferguson attempted to figure out what was going on by speaking with various witnesses to the incident. PO Gallagher remained on the first floor and also stood outside of the school for the majority of the time that he was there. PO Gallagher did not have any interaction with § 87(2)(b) or her daughter while he was at the school and he also did not witness any school safety agents or NYPD officers interacting with § 87(2)(b) or her daughter at any point while he was at the school.

PO Gallagher recalled the youth officer being at the school and other officers from the 9th Precinct being there however he did not remember who those officers were. There were a few school safety agents present at the school. He was not sure if he was still at the school when § 87(2)(b) and her daughter were being taken out of the school. He was not sure who brought § 87(2)(b) out of the school and who transported her to the precinct. He also was not sure who the arresting officer was. Teachers, school safety agents, students were in the lobby and outside of the school. He did not witness any officer grab § 87(2)(b) or her daughter to restrain them as he explained that they were already in handcuffs.

PO Gallagher stood outside of the school for approximately fifteen minutes as he was talking to some of the parents that were picking their kids up from school. He did not remember seeing, § 87(2)(b) § 87(2)(b) that was also arrested at the school. While he was standing outside, Lt. Ferguson was inside the school speaking to people inside of the school. He did not recall if Lt. Ferguson spoke to § 87(2)(b) or her daughter. He did not know what PO Giuffre did while he was at the school. PO Gallagher did not know if EMS responded to the school or to the precinct.

Police Documents

Sprint

On September 26, 2008, a female caller by the name of § 87(2)(b) called 911 to report that a Hispanic female wearing blue jeans and a white t-shirt and a school safety officer were involved in a dispute. EMS was needed at § 87(2)(b) because a school safety officer had a laceration to the arm.

Command Log

The command log indicates that on September 26, 2007, at 1632 hours § 87(2)(b) was arrested inside of § 87(2)(b) by PO Burgess. § 87(2)(b) was also arrested inside of § 87(2)(b) by PO Burgess.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) § 87(2)(b)
§ 87(2)(b) § 87(2)(b)
§ 87(2)(b) § 87(2)(b)

Complainant's CCRB History

This is § 87(2)(b)'s first CCRB complaint (Encl.2A).

Subject Officer's History

PO Keith Gallagher is a two year veteran of the NYPD and has not been the subject of any CCRB substantiated allegations (Encl.1A).

Conclusions and Recommendations

Undisputed Facts

It is not disputed that § 87(2)(b) got into a verbal altercation that involved School Safety Agent § 87(2)(b) at § 87(2)(b) whereby she was handcuffed by school safety agents and then handcuffed by PO Keith Gallagher and transported to the 9th Precinct.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(b) explained to PO Keith Gallagher what happened between her and SSA § 87(2)(b). She then asked him to loosen the handcuffs and he told her to sit down and shut the "fuck" up. In addition, § 87(2)(b) stated that after PO Gallagher switched handcuffs from agent § 87(2)(b) to his, she complained again that the handcuffs were too tight and he told her to "toughen the fuck up" and to shut up. § 87(2)(b) also corroborated with § 87(2)(b)'s statements as he explained that when he entered the principal's office, § 87(2)(b) was complaining that the handcuffs were too tight and an officer told her that they weren't tight and for her to deal with it. He stated that § 87(2)(b) continued to complain about the handcuffs and PO Gallagher told her "just deal with it, shut the fuck up." § 87(2)(g)

PO Gallagher and PO Svenstrup stated that when they entered the principal's office, they asked § 87(2)(b) if she would like to explain what had occurred and she told them that she did not want to explain what happened and immediately began threatening their job security § 87(2)(b)

Both PO Gallagher and PO Svenstrup explained that after § 87(2)(b) told them that, they did not respond to her threat and they had no further communication with her. Witness statements from PO Burgess, PO Thomas Gallagher, and § 87(2)(b) also did not provide any evidence that PO Gallagher cursed at § 87(2)(b) as they all stated that they did not witness any interaction between § 87(2)(b) and officers from the 9th Precinct. § 87(2)(g)

Lastly, in regards to the allegation that an officer pushed § 87(2)(b) away from her daughter as she was being escorted out of the school and transported to the 9th Precinct, neither PO Gallagher nor PO Svenstrup recalled if an officer had to use any physical force to restrain § 87(2)(b). PO Gallagher also did not recall if an officer specifically pushed § 87(2)(b). PO Burgess in his statement explained that he did not witness § 87(2)(b) being transported out of the school because he remained in the principal's office gathering statements from students. Furthermore, PO Thomas Gallagher and § 87(2)(b) did not witness any interaction between § 87(2)(b) and any other officers at the scene. § 87(2)(g)

Allegation A: PO Keith Gallagher spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Gallagher spoke rudely to her when she complained that SSA § 87(2)(b) and his handcuffs were too tight causing pain to her wrists. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation A be closed as unsubstantiated.

Allegation B: An officer used physical force against § 87(2)(b)

§ 87(2)(b) alleged that an officer pushed her away from § 87(2)(b) as they were in the lobby of § 87(2)(b) in the process of being transported to the 9th Precinct. § 87(2)(g)

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§ 87(2)(b) it is recommended that allegation B be closed as exonerated.

Allegation C: An officer used physical force against § 87(2)(b)

§ 87(2)(b) alleged that an officer pushed § 87(2)(b) as she was in the school lobby waiting to be transported to the precinct. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation C be closed as victim uncooperative.

Allegation D: An officer spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that an officer she believed to be PO Burgess told § 87(2)(b) that since she likes assaulting school safety agents, they should have beat her “ass”. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation D be closed as victim uncooperative.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: